

Democracy and Citizenship: An Antinomic Relationship

The concepts of citizenship and democracy are inextricably linked, but this does not mean that the relationship between the two is perfectly reciprocal. A reader who picks up a book with the title *Citizenship* might easily imagine that in the eyes of the author the former trumps the latter, that “democracy” only *qualifies* citizenship, that its relative significance would be a question of secondary importance, to be determined a posteriori. Such questions of hierarchy – or, as Rawls (1971) would say, “lexical priority” – are not peripheral. They are an important battleground in the debate between “republican” (or neo-republican) and “democratic” (liberal or social) views of politics. They constitute the basis of political philosophy’s approach, and therefore critiques of it as well, as both Jacques Rancière (1999) and Miguel Abensour (2006) have shown, each in his own way. So it is not simply that I do not wish to subordinate questions of democracy to those of citizenship, I will also maintain that democracy – or, better yet, the “democratic paradox,” to borrow Chantal Mouffe’s apt expression (2000) – is the determining feature of the problem around which political philosophy orbits, precisely because democracy is what makes the institution of citizenship *problematic*.

Citizenship has taken various forms across history. To be sure, we must be quite careful to avoid conflating these together. But we must also ask what it is that has been transmitted *under this name*, through its successive “translations.” Underneath all of them there runs an underlying analogy, which stems from the antinomy between citizenship and democracy as a dynamic for the *transformation of the political*. In using the term “antinomic” to describe this constituent relationship of citizenship – a relationship that also, of course, puts citizenship in crisis – I am drawing on a Western philosophical tradition that has emphasized two ideas in particular: (1) the permanent tension between the positive and the negative, between the processes of construction and destruction; and (2) the persistence of a problem that can be neither “definitively” resolved nor utterly eradicated. My working hypothesis will be that at the heart of the institution of citizenship there is a contradiction with regard to democracy, one that continually emerges and re-emerges. I will endeavor to identify the moments of a *dialectical process*, in which both the movements and conflicts of a complex history would appear, as well as the conditions necessary for joining together theory and practice.

It goes perhaps without saying that the pairing of citizenship with democracy is not a “natural” one. It was entirely historically determined. That being said, I plan to follow an intellectual path that spans from Aristotle to Marx – albeit with some detours – while passing through Spinoza. In Book III of *The Politics* (*Ta Politika*), Aristotle (2009) argues that all political regimes involving citizens who are “office-holders” for either a definite or indefinite term (*aoristos archē*) will always involve an element of democracy that cannot be eliminated in favor of other forms of government. His goal, however, is to mitigate the risks of this by transforming democracy into “timocracy” (as he calls it in the *Nichomachean Ethics*). In our modern era, the direction of

this argument has been reversed: first by Spinoza in his unfinished *Tractatus Politicus* (2005 [1677]) – although for him democracy was not so much a specific type of regime as it was the tendency in monarchical or aristocratic regimes for power to devolve into the hands of the multitude; and then by the young Marx, who, in his 1843 *Critique of Hegel's "Philosophy of Right"* (1970 [1843]), explicitly held that democracy – or “legislative authority” – was the “truth of all constitutions.” More recently, Rancière has returned to this thesis by showing that no regime can completely eliminate the risk posed by the necessity of gaining acceptance from its people, who can *decide to obey – or not*. Antonio Negri (1999) sees this as the central theme of an “affirmative” theory of the *constituent power* of the “multitude.” States that monopolize all of the instruments of power will continually seek to replace this capacity with forms of *constituted power*.

I believe that we must *interpret* this fundamental formulation rather differently than the authors above have, by adopting a dialectical perspective. It is the antinomy lodged at the heart of the relationship between citizenship and democracy that has been, in its successive forms, the motor for the transformation of the political institution. This is why, historically speaking, the label “democratic citizenship” can refer only to a persistent problem, an interplay of conflicts and antithetical definitions, an enigma with no definitive solution – even if periodically, in the context of a decisive *invention*, it has been declared that a solution has “finally been discovered” (Marx) or that a “lost treasure” has been either found or reconquered (Arendt).

Such formulations imply a specific conception of political philosophy, whose assumptions and counterarguments would have to be examined in detail. I prefer not to engage directly with this debate here. Not because it is purely speculative; on the contrary, its implications are quite concrete and

practical. But rather because I hope to show how these formulations can emerge via the examination of another hypothesis: namely, there are situations and moments in which the antinomy of citizenship becomes especially *visible*. The fact that it is impossible to either reject all forms of citizenship or perpetuate a specific constitution of it indefinitely will lead to an exhaustion of the very meaning of the word “politics” itself, whose prevailing usages will then come to seem either obsolete or perverse.

It seems as if today we find ourselves in just such a situation. This has profound implications for definitions and specific conceptions that had, for a long time, seemed indisputable (such as those of “national citizenship” or “social citizenship”), but also, beyond that, for the category of *citizenship* itself, whose transformative power – its historical capacity to reinvent itself – suddenly seems to have been annihilated. Against this background I will then examine (starting with Wendy Brown’s interpretation) the “neo-liberal” mode of governance as a process of the “de-democratization of democracy” that may or may not be reversible. For my part, I see it as an expression of the *destructive* character inherent in the antinomies of citizenship, and thus a challenge that will face any contemporary attempt to rethink the capacities of collective politics.

I plan to explore several aspects of this dialectic.

The first, and this still emerges in contemporary debates, concerns the scope of what the ancient Greeks (particularly the Athenians, for whom Aristotle would later make himself the theoretician of institutions) called the “constitution of citizenship” (*politeia*). This idea preceded the appearance of the division between “civil society” and “state,” which would irreversibly install the body politic within the space created by this scission. But it also gave rise to the dual ideas of power as the “indefinite office” of citizens and of reciprocal obligations as a necessary condition of their autonomy.

The second concerns the *legacy* of the “bourgeois” revolutions undertaken in the name of *equaliberty* (*égaliberté*) in the history of modern citizenship, understood as national citizenship (or citizenship in the *nation-state*). We can identify this influence as a continuing interplay or differential of insurrection and constitution, which constantly gives rise to the question of how the universal can be realized within the form (and limits) of a *community* that is organized by the state. The contradictions in this process are particularly visible in the confrontation between different theories and different practices of *representation* – given that representation is not simply an “authorization” of *representatives*, but actually a power, or even an “action,” of the *represented*.

The third aspect comes from the internal contradictions of “social citizenship” as it has come to be constituted – essentially in Europe – within the framework of the *social-national state* (*État national-social*) – an expression that, out of concern for precision, I prefer to the terms “Welfare State,” *État-Providence*, or *Sozialstaat* employed in various European countries. This means that while historically this form of citizenship represents a democratic achievement, albeit within certain *limits*, of course, this in turn paradoxically functions as an impediment to future progress, despite the fact that the idea of *progress* is inherent in it. It is particularly important to explore these limits (and to expand our understanding of their scope) in two correlative directions: the examination of the relationship between *citizenship and social exclusion* and of the relationship between *citizenship and civil conflict*.

The fourth aspect concerns what has come to be called the “neo-liberal” reaction to the crisis of the social-national state (or, depending on one’s view, the role played by neo-liberalism in triggering this crisis), which has consisted in the promotion of individualism and “rational self-interest” above all, along with the privatization of public sector functions

and services. To what extent does this pose a truly mortal threat to citizenship – not only to its *past* forms, but also to *those to come*? To what extent can we imagine that neo-liberalism contains, at least in a negative form, the premises of a *new configuration* of citizenship outside of its traditional institutions (namely, *representative democracy*, which neo-liberals tend to try to replace with various forms of “governance” and “mass communication”)? Here I will try to demonstrate, *a contrario*, the inescapability of the citizenship/democracy dialectic, by superimposing onto it the opposition between “de-democratization” and the “democratization of democracy” as a *recourse* for citizenship. It is to this last idea that I will dedicate my provisional conclusion.

Politeia

The era in which certain European nations or nations born of European expansion saw themselves as the center of the world has come to an end. Various critiques of the Eurocentric perspective have endeavored to show how the problematics of classical political philosophy do not apply to “most of the world” (Chatterjee, 2004). Nevertheless, it must still be possible to endow certain political constructions that have emerged from the Western tradition with a certain universal character. Not universal in the sense of extensive, territorial, and all-encompassing, but rather in the sense of an intensive universality; one that would ideally turn political institutions into instruments for universalizing social relationships, a means of removing the barriers between citizens and of toppling forms of domination that subjugate them – even if, as we have seen, these two perspectives can never be fully independent from one another.

The current situation has rendered these questions all the more pressing and has led them to cluster around certain core terms, which can be difficult to translate from one language to another, even when they have their roots in a shared historical and cultural space. The most obvious example of

this is undoubtedly *constitution*. For the past several years there have been periodic moments when a “European constitution” was to be adopted, following procedures that varied from country to country, which was to solemnly mark the continent’s transformation into an autonomous ensemble of a novel kind for which there is no real historical precedent. The Italian word *costituzione* (equivalent to “constitution” in French or in English) is *Verfassung* in German and *syn-tagma* in modern Greek, all of which place the emphasis on the construction of a body politic, the joining together of its various parties and the institutional production of unity and public interest. But there is a good chance that the spirit animating the creation of a European philosophy is now being steered, both by linguistic feeling and by historical debates over the essence of the political and its translation into law, in the direction of a different term, one that comes from ancient Greece: *politeia*. The Romans “translated” this as *res publica*, and the British of the classical period translated it first as *polity*, then as *commonwealth*, adopting alternate ancient etymologies. Out of these terms came the belief, which is still widely held today, in the universality of the political and legal form and in a movement of progressive and persistent expansion, first from city to nation-state, and from there to post-national communities, perhaps even the whole cosmopolitan space. At the same time, one does wonder to what extent this category contains an unchanging kernel of meaning, and whether its application to a context that is now quite removed from its initial articulation might not in truth involve a great deal of illusion and ideological mystification. For these reasons, among others, I shall provide a brief examination of the contemporary relevance of the concept of *politeia*, specifically Aristotle’s conception of it, and of the nature or limits of its universality.

For perhaps the first time since Aristotle set about describing the organizational forms of the ancient Greek cities, to

which he ascribed norms of internal equilibrium that he saw as both rational and in accordance with nature, it is possible to see the two aspects that overlapped quite closely in the Greek conception of *politeia* as two sides of the same problem, which we could group together in a single concept entitled the “constitution of citizenship.” On the one hand there is reciprocity, the distribution and rotation of “power,” of “office” (*archē*), among the rights-holders in the city, and, on the other hand, there is the organization of administrative and governmental duties (or “offices”) into a system of legal institutions. The *politeia* gave this conjunction effective form, although within certain extremely strict limits and contingent on massive exclusions. But the later developments of the state would tear the two apart, seemingly forever, through the constitution of sovereign territory and the grouping of populations under exclusive and quasi-hereditary ethnic or religious labels. Now, however, this combination of the two could again serve as a working hypothesis, a possibility once more within the context of what is called “globalization” and post-national political constructions.

This *possibility* is obviously not *necessary*, and perhaps not even *probable*, given that it is not the dominant trend at this moment. What we are seeing now is the proliferation and increased fortification of borders, which has also resulted in a change in their status. But this could be the *question* that will return insistently, putting pressure on the contradictions and aporias of the de-territorialization and re-territorialization of relationships of power. This could be the question that implicitly offers a multifaceted alternative to the processes of neutralizing and eventually annihilating the political that stem from the dominance of the capitalist market economy and communications technology. This might correspond to the “beautiful risk” (*kalos kindunos*, to quote Plato, *Phaedra*, 114 d) of a *continuation of the*

political, of a renewal or reconstitution beyond the relative exhaustion of its properly modern forms.

As we explore this hypothesis, we must ask ourselves whether we can realistically affirm the paradoxical picture of a constitution of citizenship that is both *open*, transnational, and “cosmopolitan,” as well as *evolving*, “expansive,” to use a category that Gramsci (1992) applied to democracy, or as always “to come,” to borrow a formulation that consistently appeared in Jacques Derrida’s later work (2005). This is a *conflictual* picture of a citizenship, one that remains inspired by the *politeia* model, but at the price of upending or inverting most of the anthropological presuppositions upon which it had rested up until now.

The “Constitution of Citizenship” and the “Invention of Democracy”

Let us return to what *politeia* meant in the context of the Greek city states, and attempt to provide an overview of some of its characteristic tensions, specifically through the lens of Aristotle’s presentation. It is almost a commonplace among Hellenists, philosophers, and legal historians to explain that the meaning of the Greek word *politeia* not only refers to different content from one author to another, but also “diverges” into two heterogeneous semantics. This is clearly an anachronism. When Aristotle uses the word *politeia* twice, in two distinct contexts, the term must certainly refer to a complex, evolving meaning, but it will not mean two radically different things. This anachronistic reading is revelatory of the gulf that has opened between the establishment of politics within the context of the Greek city, particularly in Athens, to which Aristotle is referring, and the institution of politics within the context of the modern nation-state, including its democratic form, where it is used

to identify what distinguishes singularly “political bodies” from other types of groupings or associations.

Here I will cite Francis Wolff, an eminent specialist on Aristotle, in his article “Polis” in *Dictionary of Untranslatables: A Philosophical Lexicon*:

The *polis* is thus neither a nation, nor a state, nor a society. [...] What constitutes the *polis* is the identity of the sphere of power (which for us concerns the “state”) with the sphere of community (which for us is organized into “society”), and it is to this unity that each individual feels affectively bound (and not to the “nation”). [...] This is why the *polis* is neither the state nor society, but the “political community.” [...] If the *politês* is defined as a person who participates in this *polis*, the *politeia* may be either the subjective bond of the *politês* to the *polis*, that is, the way in which the *polis* as a community distributes among those whom it recognizes as its participants (the “citizenry”), or the objective organization of the functions of government and administration, that is, the way in which the power of the *polis* is collectively guaranteed (the “form of government” or the “constitution”). (Cassin, 2014: 802)

My colleague refers to the famous tri-partition of political regimes, in which power is either exercised by one, several, or all citizens, that has long dominated political philosophy. He implicitly evokes the fluctuations in the names given to these regimes, names heavily laden with value judgments: *tyranny* or *monarchy*, *aristocracy* or *oligarchy*, *democracy* or *isonomy*. This is what led him to point out the crucial problem in the interpretation of Aristotle’s thinking, which is the fact that Aristotle again uses the same word, *politeia*, to refer to constitutional rule “par excellence,” which distributes power among all citizens according to the “common good” (*pros to koinon sumpheron*). It would seem then that

Aristotle gives, or at least appears to give, this term a third, either redundant or reflexive, meaning.

There is another possible reading, however. The term *politeia* never has a single meaning, even if we are obliged to render it in English or modern Italian as a composite expression, such as the “constitution of citizenship” – here meaning constitution in the full sense of the word: not just a legal text, but also the historical process of constitution or of societal and institutional social formation. It has always been a question of “educating” or “configuring” the citizen, the carrier of political action, by formulating an explicit list of rights, duties, and powers, and in prescribing the modalities of his – and more recently her – existence. This is as true now as it has ever been. Take, for example, the fact that we are told that federated or confederated Europe will be given a “constitution,” notwithstanding the more or less unsatisfactory forms this idea has taken up to this point. In the final analysis, the validity, the coherency, the temporal solidity of such a project will be judged by the manner in which it will define new rights, new duties, new powers; whether it succeeds or fails to give rise to a historically new kind of “citizen.” To say that it is not clear this will happen is putting it lightly, if only because of the fragility of the geopolitical framework inside of which this attempt is being made, the strength of the interests opposed to it, and the violence of the social tensions that have arisen within the context of economic globalization. But it is also clear that if it were to succeed, some part of the power, the intrinsic energy, of the old concept would be reactivated, albeit with a different content and in an altogether different context.

But let us return once again to the way Aristotle presented the meaning of the Ancient *politeia*, particularly in Book III of *The Politics*. He defines this concept in three moments, in what is either a dialectical progression or a quite remarkable

approximation of it. Here are the three characteristics described in this definition in three stages:

- First (this is the most general definition, the most abstract one, an example of which is given on 1275 a30), a *politeia* exists, which is to say that there are “citizens” and as a result a “city law,” where the individuals who constitute it and rotate between different positions of power exercise an *aoristos archē*: an indefinite office, temporally indefinite, but also indefinite with respect to its object and its modalities, which makes them the “sovereigns,” or “masters,” of the community to which they themselves belong (*kurioi* or *kuriôtatoi*).
- Second (this is the principal, discriminating, definition, given on 1277 a25), there exists a *politeia* between those who, depending on the circumstances, can alternately be in the position of giving orders (*archein*) or receiving them (*archesthai*), who are at one moment ordering and another obeying, and in this sense rotate freely among positions of power.
- Thirdly and finally (this is the final definition given on 1282 a25 and following passages and repeated in Book V, on 1301 a25), a *politeia* exists where the powers or “offices” (still *archai*) are “proportionally” (*isos*) distributed among the citizens relative to their competencies or capabilities and in accordance with the law (*nomos*). In this Aristotle expresses his belief, or his hope, in the city as a concrete, stable form, which is what would allow it to effectively attain its natural goal, which is the common good or the possibility of a “good life” for its members.

Each moment in this progression, which is obviously guided by a political “preference” that for Aristotle had to be founded in both reason and nature – which we might call

his ideological *pre-commitment* – gives rise to its own fundamental questions. Let us examine them systematically, before passing on to the investigation of why it is that this synthetic formulation of the problem of citizenship was, in a certain sense, “lost” once it was removed from the context of the city, all while continuing to haunt the political space as an ideal or as something repressed.

The idea of indefinite office (*aoristos archē*) is clearly linked to one of Aristotle’s most radical arguments. Aristotle saw this argument as part of the series of reforms designated in classical Athens by the category of *isonomia*, and it brings him closer to certain Sophists while opposing him directly to Plato. According to this argument, the essence, the foundation, of any *political* regime lies in the sovereignty of its own citizens. According to Aristotle, it would be contradictory for power not to belong, in the last resort, to those for whose benefit it was established. This thesis has never ceased to be problematic. It has been systematically attacked by the many diverse authoritarian political traditions, which all make a variant on the same argument that the multitude of citizens are incapable of governing themselves. On the other hand, it was also periodically reaffirmed: by Machiavelli, by Rousseau, by the young Marx, by Tocqueville, and more recently by Arendt, and in the end it came to appear inseparable from the very idea of political universalism. Is it a utopian ideal, or perhaps only purely formal or symbolic? This may very well be the case, but Aristotle gave it quite precise content, arguing that for the multitude of citizens it corresponded to their *effective participation* in the two great responsibilities, which were, on the one hand, *boulein*, deliberation and decision within the framework of popular assemblies, and, on the other, *krinein*, the exercise of legal duties. It also raises a question that is not, strictly speaking, that of the division of powers, but rather of whether there are certain “protected” areas of political life that would be *in their very*

nature beyond the competencies of the citizenry. Then there is also the question of whether popular sovereignty can ever become purely “representative,” completely transformed into a legal fiction, or whether it must always involve a certain degree of true participation, of “active” citizenship or self-governance. It also opens the question, without giving any definitive answer, of how the real and the virtual are distributed in the idea of democratic sovereignty.

The idea of alternating between governed and governing – *to dunasthai archein te kai archestai* (1277 a25) – and the corresponding moral idea according to which it is by obeying that we learn to command and it is by exercising the responsibilities of authority that we learn to obey (1277 b8–10) – which is what properly speaking constitutes the virtue (*arete*) of a citizen – places the mechanisms of *reciprocity* at the heart of citizenship. It therefore already represents a strong argument in favor of what we would later, in more Roman language, call *equal liberty*, not only as *status* but also in *practice*. Aristotle offers a positive take on the negative, polemical, statement that Herodotus (who had been a student of the Sophists) placed in the mouth of Persian Prince Otanes: without an equal distribution of power, I wish to neither command nor obey (*oute archein oute archesthai ethelô*). In other words: either democracy or anarchy! But this conception of equal liberty as a reciprocity of powers and obligations is immediately accompanied by a radical *limitation* of citizenship. Reciprocity can only exist, for Aristotle and his contemporaries, between those who are equal *by nature*. This means that at the core of the political there is a mechanism for discrimination on the basis of anthropological difference: gender difference, age difference, the difference between manual and intellectual capacities, specifically insofar as it justifies the institution of slavery. (Aristotle was well aware that in Athens a large section of the citizenry were peasants or artisans, but he retained the aristocratic

view, which Plato had taken to its extreme, that held that there was something “servile” about manual labor as such.)

This opens up not just a gap, but an abyss. The principle that establishes the intensive, or qualitative, universality of *demos* also involves a seemingly insurmountable quantitative exclusion. And we know that, far from relieving this tension, modern universalism’s transformation of the equal liberty of citizens into the *rights of man and citizen* within the national framework has in fact aggravated it. This tension did not prevent the emergence of social movements and struggles that led to entire categories that had previously been excluded, such as women or laborers, becoming or re-becoming citizens; what it did entail, however, was that those who have been excluded from citizenship (and there are always old or new categories that are) are represented, and so to speak “produced,” by all sorts of disciplinary or institutional mechanisms, as imperfect human beings, as “abnormals” or monsters on the margins of humanity.

We have not yet escaped, and are perhaps not even close to escaping, from this contradiction. It would require not just a political revolution, but also an ethical and philosophical one – which we are far from achieving, even if its principles are clearly formulated in works like Arendt’s (1951) – to arrive at a universal “right to rights,” or, better yet, at the idea that the *politeia* does not solely consist in establishing reciprocity on the basis of a *given*, pre-existing – or at least allegedly pre-existing – equality, but in *widening the scope* of the sphere of equality, actively *producing* it as a “fiction,” constantly transgressing the limits imposed by “nature” (or that which goes by this name, which is actually tradition). It is probably not happenstance that the “dialectical reversal” of the traditional philosophical formulation of the “rights of man and citizen” came from a woman, who was also an avid reader of the Greeks and was familiar with their distinction between *nomos* and *phusis*.

Finally, as to the conception of the law (*nomos*) as the proportional “distribution” of offices and civic responsibilities, there arises an analogous tension, one which cannot perhaps be separated in practice from the tension between reciprocity and exclusion, but which we should also be careful not to conflate with it simplistically. It seems here as if Aristotle retracts what he had originally conceded in the name of *aoristos archē*. It appears as if he wishes to limit the effects of the sovereignty of the *demos* in the name of the rational exigencies of the common good and good government. To use Rancière’s striking terminology: it is not only that all citizens, who are nominally sovereign, do not have an equal share in the established power structure, and notably in the power to make decisions, but that from this point of view there must also necessarily be those who are “share-less” – individuals and categories whose share is denied, and for whom chances to obey will always outnumber chances to take charge or take initiative, who are expected to be passive more often than active. This seems to be the price exacted by the establishment of *consensus*, of *equilibrium* or *homonoia*, of political stability. Or rather, it is the price to be paid for the replacement of conflict (the class struggle in the general sense, but also the struggle between “majorities” and “minorities” or all kinds) with consensus, and therefore *the relegation of these conflicts to outside the public space*; with the exception that – and we have learned how to recognize this – the repressed conflict will always re-emerge, will always return anew, if indeed on new battlefields, in a manner that can be either productive or destructive. It might be that within certain limits and in certain forms, the acceptance and recognition of conflict in the public sphere constitute a *necessary condition* for institutional equilibrium itself, or, at the very least, for “dynamic” equilibrium. This was Machiavelli’s theory, which today seems increasingly relevant, at both the national

or continental level, but especially at the *global* level. However, here again, we must note that the tension inherent in the concept of the *politeia*, which we could call its “differential” of activity and passivity, or of democracy and oligarchy, has in no way been resolved by the advent of modern constitutions, but indeed has been ratcheted up to a higher level.

Everything comes down to the way in which the people’s sovereignty is positively established. Modern constitutionalism has made it a principle for *legitimizing* representative mechanisms for delegating power. But it has also had a tendency to subordinate the exercise of popular sovereignty, citing the risk of anarchy and its perversion into totalitarianism, to certain meta-legal “basic norms,” which are derived from the principle of the balance of powers or guarantees of individual rights, which are clearly necessary, but are apparently acquired once and for all. It should be said, however, that there is another possible way to conceive of the question of the rules and guarantees to which popular sovereignty must subject itself as a sort of *self-limitation* of its own power, which is the basis of its rationality (as opposed to a theological or mystical conception of sovereignty). This alternative is what Claude Lefort (1981), to use one example, calls the *continued invention* of democracy. It is not that we must throw out constitutions in favor of insurrections, but rather that we must place the insurrectional power to emancipate at the core of political constitutions. We should think of the “Charters of Fundamental Rights” (with, first and foremost, the Universal Declaration of the Rights of Man) as symbolic expressions of the ensemble of powers that the “people” have acquired over the course of their history, the sum of their emancipatory movements, serving as footholds for future inventions, rather than buttressing the established order and limiting future struggles for freedom and equality *a priori*.

Autonomy or Autarchy of the Political

Before moving on, it would be useful to address an epistemological consideration. The above propositions do not simply represent a mode of constituting citizenship within the universal modality and – dialectically – the mark of quite profound tensions inherent in universality itself. They also express the idea of the *autonomy of the political*. But they express it in the form, and under the condition, of the *autarchy of the polis*, of the “community of citizens.” This, in turn, has two symmetrical traits, which a certain critical tradition, notably Marxist, has had a tendency to perceive as simply two sides of an *idealization of the political*. It is not necessarily clear, however, that they are in fact marching in lock-step. How far can we successfully draw the two apart?

On the one hand, making the political autonomous places it on a “plane of immanence,” corresponding to either a radical de-theologization or a critique of any transcendent foundation. The *politeia* is a system of *relationships* that citizens establish among *themselves*, because it emerges out of the development of their own conflicts of interests and values. This relationship is not subjugated to any transcendent authority, whether it be the Idea of the Good (Plato), or the idea of humanity hypostasizing into a “Great Being” (Comte) or a “community of ends” (Kant). There is therefore no unifying principle that could be imposed on everyone and that would belong to no one. More precisely, the only overarching principle is *the community itself*, as a totality, a *polis* to which citizens “belong” because they have established it.

Here we encounter the symmetrical aspect of this: *autarchy* should be understood as, at the very least, relative isolation with regard to the outside world, the *cosmos*, and to the *oikouménē* (“inhabited world”) where historical communities dispersed and became individualized. But it should

also be understood as an *independence* or a “cultural” liberation with respect to the *material conditions* of life, of human production and reproduction, with the potential result that these, along with all of their corresponding practices (work, sexuality and maternity, the education of children), might be relegated to a domestic sphere of *internal exclusion*, which, as we noted above, has historically corresponded to the institution of patriarchy and slavery.

We should note that, at the philosophical level, the construction of the autonomy of the political within the constricting form of autarchy corresponds perfectly to the division between *nomos* and *phusis* that was at the core of ancient Greek thought and around which these different tendencies position themselves, as around a point of heresy. Public life comes from the *nomos* or the institution, while domestic activities are a *natural* condition. We can also observe that with the phenomenon of “globalization,” the two meanings of autarchy have been, in a certain sense, fused together. To discuss the material conditions for the existence of a *politeia*, whether they are drawn from the economy of labor and trade or the bio-economy and biopolitics of populations and the survival of the human race, is *ipso facto* to discuss the relationship that each “community of citizens” maintains with the ensemble of other human societies (including the most “primitive”) and that thereafter determine it from within – whether it be a question of class composition and social conflicts, or of modes of communication and cultural development. In other words, by becoming *fused together* over time, the “autarchic” limitations of the *politeia* have irreparably collapsed as “borders.” It is no longer possible for any society, any *polis* in the metaphorical sense of the word, to construct itself (if indeed this had ever been possible) within such limits, except in an imaginary sense. It can only exist now as an *open city*, opening onto different “externalities” that condition it from *within*, which

may seem to be a contradiction in terms. Or, in other words, the idea of the autonomy of the political – as an autonomization of *collective action*, and as a radically secular relationship to the self, immanent in the “body politic” (the system of social relationships and the dynamic of internal conflicts) – can only have meaning today if we renounce once and for all the myth of autarchy and the others that accompany it (from autochthony to the untranslatable specificity of every culture). Although we have neither guarantee nor certainty, we must make this leap into the project of building a community of citizens that would be *open* in principle, but that would not as a result forfeit the ideas of rights and obligations or of the distribution of powers and collective participation in *self-government*. As we have observed in the debates surrounding environmentalism and “globalism,” there has also been a profound transformation, although evidently an *unfinished* one, in the opposition between nature and the institution (or the *physis* and the *nomos*), which certain political philosophers have seen as a new materialism, while others, on the contrary, have viewed it as an argument in favor of a generalized artificialism.

Politeia and the “Withering Away of the State”

Let us return to my initial aim. Once again, it is a question not of providing solutions or of giving answers, but rather of formulating a question that will serve as a guiding thread for what is to come. Would we be justified in assuming that a renewed examination of the dominant form of nation-state citizenship will, paradoxically, *reopen* the dialectics inherent in the concept of *politeia*? That it will revive, in other words, the question of how to hold together the demands of the reciprocal recognition of rights – which I am tempted to call the “pressure of equal liberty” – and the demands of the regulation of social conflicts, of the *self-limitation* of the

exercise of power. Nothing seems further removed from our contemporary European perspectives, and yet two types of argument can be brought to bear, one negative, one positive.

On the negative side, we can observe that we have undergone a very long historical cycle through imperial, urban, and finally state forms of government, during which the principle of citizenship was alternately lost and reconstituted by identifying itself with the construction of nations – as can be seen in the use of such terms as the Anglo-American *citizenship* or the modern German *Staatsbürgerschaft*. In its urban medieval and renaissance form, the principle of ancient-style citizenship survived as a historical exception. (See Marx Weber's [1957 (1921)] analysis of the city [*Stadt*], which he defined as a form of "illegitimate domination," which is to say, an institution of power with no transcendental "guarantee," eternally exposed to the risk of insurrection.) But this cycle, in all its complexity, nonetheless fundamentally contributed to the translation of citizenship into the language of the *state*, or its subordination to the functioning of the state. The "people" therefore incrementally became a function of the state. They became incorporated, perhaps even *assimilated*, into the state. "*Ich, der Staat, bin das Volk*" ("I, the state, am the people"), to quote Nietzsche's terribly ironic phrase from the beginning of *Thus Spoke Zarathustra* (1978 [1885]: 75), written at the very moment when the imperial European powers were "dividing up the world" at the Congress of Berlin. Modern constitutions (which have been attacked on this very point by Negri [1999]) have adopted the habit of defining "constituent power" not as an insurrectional power, but as a *state function*, for example as the right to revise the constitution within the forms and limits that it sets out for itself, or to periodically replace those in power.

Naturally, this evolution presupposes a deep collective feeling that identifies individuals and intermediary social

bodies with the higher-level state community. The consequences of this extend beyond pathology or repression. It represents, undeniably, *alienation* in the philosophical sense of the term, even in the “freest” states. This alienation, with its dual features of protection and constraint, has reached its peak in the most evolved form of the European nation-state as a *community of passive citizens*: the social democratic state, or, as we will call it later, the “social-national” state. We know that such states – where and to the extent that they have existed – were the results of an age-old confrontation with social and political movements that represented forms of *active citizenship*, and even certain forms of insurrectional demand-making. Actively demanding citizenship brought the permanence of conflict into the core of the sphere of the formalized state. This is what could lead us to say that, in the extreme, in the state configuration of the political there is no “democracy” in the pure or ideal sense of the term, but that there could always be a process of *democratization* – which is in truth perhaps more important.

But up to what point, up to what moment? And therefore, within what limits does democratization occur? It is quite difficult to say. At the very least it seems clear that the answer depends on the capacity for survival of the system by which collective identification with the state, the development of bureaucracy as the intermediary between citizens and their own practices, are joined with the practices and movements of the organized social struggle, more often than not within a national framework. The results of this have necessarily been ambiguous. From this point of view it is extremely revealing that the institutions of the revolutionary labor movement have always started in internationalism only to end up in nationalism. Even the movements of solidarity with anti-colonial emancipatory struggles did not, in the end, lead to any lasting changes. But today this mindset has

perhaps reached its limits. In any event it has suddenly shown an extreme internal weakness, poorly camouflaged by the proliferation of bureaucracies and “supra-national” legal bodies. We saw this when the European Union asked its nominally sovereign (although at the second degree) “citizens” to perform their state-given “constituent” role – even though the EU itself is nothing more than the ghost of a state, as it includes no truly effective element of collective identification. On the other hand, there is the fact that despite the economic crisis, it wishes to avoid confrontation with any general social movement that would be capable of transnationalizing political conflict. Perhaps such a structure offers a prefiguration of the form in which the state institution of citizenship will *survive* in the years to come, and it might, in fact, represent a form of *statism without a state*, under the name of *governance*. For this reason, there is a high chance that the weakening of the national form of state citizenship will lead only to emptiness, or an anti-political reaction, in the form of resurgent populism or nationalism, for example.

In other words, what we are seeing is a *vacillation* of the age-old balance between the *politeia* and the state (or the *imperium*). On its own, this vacillation has not yet sparked a renewal of the democratic dynamic. It has certainly not resulted in a pure and simple *return* to the communal and autarchic pre-state forms. Instead, it has led to a period of extreme danger for the democratic tradition, a phase that could last for quite a long time. But let us again remember that even if the crisis does not make a renewal *necessary*, and is perhaps not even particularly favorable to it, it does not present a *fatal* obstacle to it either. In a certain sense it makes its urgency all the more apparent. It is therefore a *negative* precondition for a return to the problem of the *politeia*.

“Civil Society”: The New Location of the *Politeia*?

What, then, would the positive condition be? Here we must operate at an even more hypothetical – if not speculative – level. We must ask ourselves what forms could possibly be taken by, or might currently be taken by, “constituent processes” – or *elements of post-state citizenship*, which are necessarily *disjointed*, even fragmented and relegated to the extremities of the political space, but which are nonetheless “destined” to find each other, or which could be brought together through our efforts. Where could such elements be found? Where even do we begin to look for them?

One answer to this question, which has been in vogue for quite some time, is *civil society*. This has actually been a point upon which Marxists and post-Marxists, theoreticians of “anti-systemic movements” and liberal thinkers, have been able to agree – at least verbally. It cannot be denied that civil society made many of the emblematic political phenomena of our era possible, particularly new dimensions of active citizenship that are not reducible to the formalism of the state or the national framework (Cohen and Arato, 1992). For this reason, it is very important to emphasize the way in which the state has essentially *lagged behind*, remaining stuck within the framework of the nation, or simply attempted to transpose this form onto a higher level. Civil society, on the other hand, is seen as extending out transnationally, across borders – a “commercial” society, in the full classical sense of the term, despite the obstacles raised by the heterogeneity of languages and cultures (or using these as an opportunity to create new forms of communication).

It might seem as if the category of the “multitude,” as Hardt and Negri (2000, 2004, 2009) employ it, is simply a radicalization (and also an idealization) of this answer, as its symmetry with the concept of the *imperium* would suggest.

The problem with such a simple reading is the fact that embedded in their conception of the multitude is a *division* between its constituent force and the social forms imposed by capitalist development. It is therefore a decomposition rather than an autonomization of “civil society.” Then there is the fact that, for Hardt and Negri, the “empire” that the multitude opposes (“resists”) is not a purely “private” or “corporate” structure, but includes the state as well, even if, in line with the Marxist tradition – to which Hardt and Negri are, at least on this point, entirely faithful – to them the state is nothing more than a *function* of the capitalist system. State and civil society are not external to each other. And, finally, there is the fact that Hardt and Negri look for a principle of resistance and a power specific to the multitude *underneath* the relationships and institutions that constitute civil society, in the “ontology of productive forces,” which are vitalist in nature or, when they borrow Foucault’s terminology, “biopolitical.” Hardt and Negri’s powerful and provocative argument therefore contributes to the problematization of the idea of “civil society” as the new location of the political, rather than offering it up as an answer.

There are several weaknesses with identifying the *politeia* to come with the power of “civil society” as a new “political society,” although both contemporary context and ancient ideas seem to be pushing in that direction. The first is that the category of “civil society” includes certain forces, institutions, and tendencies that are not only not *democratic* in any way, but aren’t even *political* in the sense of the term that we are trying to recover by tracing back to its origins. These are, first and foremost, the forces and structures of capitalist markets, which have swallowed up the production and commercialization not only of material goods, but also of life (or of *care*) and culture. These forces that dominate “civil society” constitute the *matter*, but also represent the antitheses and obstacles to the “civic” movements to come. It is

not a question of destroying these forces so much as it is of mastering them, and therefore thwarting them, in such a way as to channel economic power into the service of the common good of society, and, beyond that, of the many societies that make up humanity. What we should inscribe *positively*, among the factors in the reconstitution of the *politeia* beyond the state, or rather beyond the monopoly of the state and the crisis of the state, is not civil society as such, but the *differences between tendencies* within civil society, specifically the confrontation between the logics of public interest and private interest that takes place within it.

There is another drawback to this reference to civil society, seen either as a certain kind of fetish or as a shibboleth, that we can attempt to turn into an advantage or a positive recommendation. This is that it excludes, or seems to exclude, the institutional forms and organization that are not infra-state or “private,” but, on the contrary, supra-state. I am referring not to “alliances,” “federations,” and “confederations” of states, but to the *global* judicial, economic, environmental, or health organizations that are charged with protecting the collective security and the fight against unequal development, ranging from the United Nations to the World Health Organization to the International Criminal Courts, and passing through the World Bank and the International Monetary Fund. Naturally, in order for there to be the possibility of locating the constitution of citizenship within these institutions – which, at least virtually, are an embodiment of a certain kind of “community without a community,” bodies regulating conflicts of interests in the world, founded not on belonging and autarchy, but on universalized reciprocity – would require a radical democratization that still remains very distant. This is because it would require not just the dissolution of their ties to states, which, for the most part, they rely on today, but rather a decisive step “beyond the Leviathan” (Marramao, 1995), towards a sharing and

relativization of state sovereignty. It is all too clear the extent to which powerful forces will stubbornly, even violently, resist an inversion of the corridor of transmission between the state *imperium* and the international or global *auctoritas*. This inversion would involve these international organizations acquiring a cosmopolitan authority independent of that of the states. This authority would be rooted in the practices, procedures of intervention, modalities of cooperation, participation, delegation of power, and representation that *bypass* the state level, and *descend* down to the level of the communities of citizens themselves, in order to receive some of these groups' momentum, as they simultaneously establish their legality *at the top*. In the present moment, we can *ask* this question, but we cannot *answer it*. But history does not ask (itself) only questions that it can answer... Or maybe it can only answer them by posing them differently.